

Court No. - 29

Case :- WRIT - C No. - 32361 of 2019

Petitioner :- M/S Chaudhary Ice Plant

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Amir Khan, Himanshu Pandey

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Pankaj Mithal, J.

Hon'ble Vivek Agarwal, J.

The challenge in this petition is to the demand of electricity dues. The submission of learned counsel for the petitioner is that the petitioner had paid the regular bills but even then consolidated bill for the past years has been raised by the Department for a sum of Rs.53,16,528/- which is wholly illegal and incorrect. The dispute as raised by the petitioner is actually regarding correction of the aforesaid bill which has been filed as part of Annexure-6 to the writ petition.

The said dispute depends upon the factual aspects and can be considered by the Executive Engineer in exercise of powers under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner in this connection has already approached the Executive Engineer by means of representations dated 01.01.2019, 13.02.2019 and 01.04.2019.

In view of the above, we dispose of this petition with the direction to the Executive Engineer i.e. respondent No.3 to consider and decide the aforesaid representation of the petitioner in accordance with law most expeditiously preferably within a period of six weeks from the date a copy of this order is produced before him along with a fresh representation.

In the meantime, if the petitioner deposits 25% of the disputed amount of the aforesaid bill, the electricity supply of the petitioner shall be restored forthwith subject to the decision of the Executive Engineer.

Petition is **disposed off**.

Order Date :- 18.10.2019

Ashutosh